

February 7, 2007



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 12969
(SECOND REVISION)

EXPIRATION DATE: January 31, 2011
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(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Arrowhead Industrial Services, Inc.
Graham, NC
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain DOT specification cylinders containing Division 2.2 materials for the purpose of performing the pressure relief devices tests specified in § 173.301(f). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 180.205 in that cylinders equipped with pressure relief devices that have not been tested are not authorized, except as specified herein; the marking requirements specified in §§ 172.203(a) and 172.301(c).
5. BASIS: This special permit is based on the application of Arrowhead Industrial Services, Incorporated dated February 6, 2007, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Division 2.2 materials that are authorized to be shipped in DOT specification cylinders	2.2	As applicable	As applicable

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are DOT specification cylinders that meet all manufacturing, testing, inspection, and marking requirements of the applicable specification except that the cylinder is equipped with a pressure relief device(s) that has not been tested in accordance with the provisions of § 180.205.

b. OPERATIONAL CONTROLS -

(1) Shipment of prescribed cylinders is authorized only from the Arrowhead Industrial Services laboratory to a remote testing facility for the purpose of completing the required tests.

(2) Only Arrowhead Industrial Services Company vehicles and drivers may be used to transport cylinders to the testing facility.

(3) Cylinders must be shipped in strong outside packaging in accordance with § 173.301(a)(9).

(4) No more than six cylinders may be transported on each vehicle.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered for transportation.

- b. The driver of the motor vehicle must be instructed in how to proceed if the vehicle is in an accident involving spilled fuel or fire.
 - c. The marking requirements specified in §§ 172.203(a) and 172.301(c) are waived.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous

materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Bob Richard
Deputy Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: cwf/sln